Republic of the Philippines
Bangsamoro Autonomous Region in Muslim Mindanao
BANGSAMORO TRANSITION AUTHORITY PARLIAMENT
Bangsamoro Government Center, Cotabato City

THIRD REGULAR SESSION

PARLIAMENT RESOLUTION NO. 481

RESOLUTION URGING THE MINISTRY OF BASIC, HIGHER, AND TECHNICAL EDUCATION TO ALLOW THE TEACHING OF RELIGION TO CHILDREN IN PUBLIC ELEMENTARY AND SECONDARY SCHOOLS IN THE BANGSAMORO AUTONOMOUS REGION IN MUSLIM MINDANAO WITHIN THE REGULAR CLASS HOURS

WHEREAS, Article XIV, Section 3 (3) of the 1987 Philippine Constitution provides that *"At the option expressed in writing by the parents or guardians, religion shall be allowed to be taught to their children on wards in public elementary and high schools within the regular class hours by instructors designated or approved by the religious authorities of the religion to which the children or wards belong, without additional cost to the Government;"*

WHEREAS, Article III, Section 5 of the same Constitution states that *"The free exercise and enjoyment of religious profession and worship, without discrimination or preference, shall forever be allowed;"*

WHEREAS, Article IX, Section 5 of Republic Act No. 11054, otherwise known as *"Organic Law for the Bangsamoro Autonomous Region in Muslim Mindanao"*, states that *"The Bangsamoro Government shall guarantee religious freedom and the free exercise thereof pursuant to the Constitution, national laws, and principles of international law;"*

WHEREAS, Section 39 (j) of the Bangsamoro Autonomy Act No. 18, also known as the *"Bangsamoro Education Code of 2021"* posits that

> *"In addition to other rights, and subject to the limitation prescribed by law and regulations, and learners in all schools shall enjoy the following rights:*
>
> *xxx*
>
> *(j.) The right to be free from any form of discrimination on the basis of disability, gender, religion, socio-economic status, etc."*
>
> *xxx*

WHEREAS, Paragraph 1 (1) Department of Education (DepEd) Order No. 49, S. 2009 states that *"It is the declared policy of the State in conformity with the mandate of the Constitution, to encourage and promote the teaching of religion to children in public elementary and secondary schools within the regular class hours. For the State is cognizant of the vital role that the teaching of religion assumes in the citizen formation, particularly the molding of our youth. Hence, the States recognizes the necessity of religious instruction not only in the private schools but also in public schools. For these purposes, this Department shall provide hereunder the mechanics to enable the teaching of religion in all public elementary and secondary schools over the country, fully aware in the process that the Constitution prohibits the government from favoring a particular establishment or religion or prohibiting the free exercise thereof;"*

WHEREAS, Paragraph 1 (10) of the aforementioned DepEd Order, further states that *"Any principal, school head, or teacher who violates any provision of this Order shall, after due process, be subjected to appropriate disciplinary sanctions;"*

WHEREAS, the state recognizes the importance of teaching religion to public and private schools as it aids in citizen formation, particularly the molding of the youth as they are the backbone of the state, and are significant contributors to nation-building;

WHEREAS, to comply with the mandates of the law, the Ministry of Basic, Higher, and Technical Education (MBHTE) is hereby advised to promote the teaching of religion to children in public elementary and secondary schools during regular class hours, without discrimination towards any religion students choose to be taught, with the proper request and consent of the children's parents or guardians in consonance with the guidelines directed by DepEd Order No. 49, S. 2009;

WHEREAS, the MBHTE is also advised to strictly impose appropriate disciplinary actions on principals, school heads, or teachers who willfully violate the provisions of DepEd Order No. 49, S. 2009;

WHEREAS, this Resolution intends to protect the constitutional guarantee for equal protection of the laws and preserve as well the right of the students to free exercise of their religion, without discrimination and unfair treatment:

NOW, THEREFORE, be it

RESOLVED, as it is hereby resolved by the Bangsamoro Transition Authority Parliament, To urge the Ministry of Basic, Higher, and Technical Education to allow the teaching of religion to children in public elementary and secondary schools in the Bangsamoro Autonomous Region in Muslim Mindanao within the regular class hours.

RESOLVED, FURTHER, To forward this Resolution to the MBHTE, for information and appropriate action.

ADOPTED, *Muharram* 17, 1446/July 23, 2024.

Certified Correct:

PROF. RABY B. ANGKAL
Secretary-General

Attested:

ATTY. PANGALIAN M. BALINDONG
Speaker

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